

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC MOSZKOWSKI,

Plaintiff,

Case No: 2020 CA 001021

Division: E

vs.

RUSTIN R. HOWARD and
THOMAS J. JOHNSON,

Defendants.

MOTION TO DISMISS

Comes now, Rustin R. Howard and Thomas J. Johnson, by and through the undersigned attorney, and move to dismiss Plaintiff's complaint for failure to state a cause of action, pursuant to Rule 1.140(b)(6), Florida Rules of Civil Procedure, and in support thereof states:

COUNT I—MALICIOUS PROSECUTION.

The parties to this case have not met in litigation prior to this action brought by Plaintiff. DeepGulf, Inc. and Toke Oil & Gas, S.A. sued the Plaintiff in the present case in a case that was ultimately heard in the Northern District of Florida as Case No. 3:18-CV-1466-TKW-MJF. That case is currently on appeal in the United State Court of Appeals for the Eleventh Circuit, as Case Number 20-12897-G.

Plaintiff's claim for malicious prosecution should be dismissed for several reasons. The simplest reason is that in a case for malicious prosecution, such cause of action does not accrue until an appeal is decided. Cazares v. Church of Scientology of California, Inc., 444 So.2d 442 (Fla. 5th DCA 1983).

In addition to the reasoning above, the Defendants in the present case are not the Plaintiffs in the prior case. Thus, as they have not prosecuted anyone, they cannot be subject to a

claim for malicious prosecution, as they have not prosecuted a case at all. Moreover, there was not a bona fide adjudication on the merits of the case in Plaintiff's favor, as by Plaintiff's own allegation in Paragraph 10 of the Complaint, 1 Count was ruled on in DeepGulf's favor in the underlying litigation. Additionally, any such claim would be barred by litigation immunity. Finally, when a case is adjudicated based upon an affirmative defense¹ such a resolution cannot support a claim for malicious prosecution. Jones v. State Farm Mut. Auto. Ins. Co., 578 So.2d 783 (Fla. 1st DCA 1991).

COUNT II—ABUSE OF PROCESS.

The elements of a cause of action for abuse of process under Florida law are: (1) an illegal, improper, or perverted use of process by the defendant; (2) an ulterior motive or purpose in exercising the illegal, improper, or perverted process; and (3) damages to the plaintiff as a result. Antoine v. State Farm Mut. Auto. Ins. Co., 662 F.Supp.2d 1318 (M.D. Fla. 2009). Under Florida law, "[a] cause of action for abuse of process requires both allegations of a willful and intentional misuse of process for some wrongful or unlawful object, or collateral purpose, and that the act or acts constituting the misuse occur **after the process is issued.**" (emphasis added) Whitney Information Network, Inc. v. Gagnon, 353 F.Supp.2d 1208 (M.D. Fla. 2005); Marty v. Gresh, 501 So.2d 87 (Fla. 1st DCA 1987). Additionally, filing a lawsuit with the ulterior motive of harassment does not constitute abuse of process... the tort of abuse of process is concerned with the improper use of process after it issues. Della-Donna v. Nova University, Inc., 512 So.2d 1051 (Fla. 4th DCA 1987).

The only alleged fact that could be possibly construed as being abuse of process is found in Paragraph 30 where Plaintiff alleges that "Howard and Johnson caused the lawsuit they

¹ Paragraph 13 of the Complaint alleges that the case was filed "long after the Statute of Limitations had expired."

instigated to be filed on behalf of DeepGulf, of which Moszkowski is the largest shareholder, with nearly 50% of the stock, a Director, and the President, instead of in a derivative action on behalf of other shareholders...” (emphasis added). This allegation, which the Defendants vehemently deny, relates to the initial filing of the prior lawsuit, and is clearly not after the process is issued, as required under Florida law to support an abuse of process claim.

COUNT III—BREACH OF CONTRACT.

Count III claims that the Defendants have ignored Plaintiff’s request for payment of legal fees in accordance with DeepGulf’s own Bylaws, said bylaws mandating in Article XI that **DeepGulf** must unequivocally pay for Plaintiff’s legal costs. Plaintiff by his own allegation in Paragraph 34 states that the alleged obligation to pay attorney’s fees is that of DeepGulf. As such, Plaintiff cannot state a claim against Defendants and Defendants are not proper parties to Count III.

COUNT IV—FRAUD.

Plaintiff makes a claim for fraud based upon falsification of corporate records under Count IV. Count IV goes on to make allegations about matters that occurred at the trial held in federal court. Had Plaintiff wished to address these matters, he had ample opportunity to do so in the federal court case. Whatever is alleged to have occurred by the Defendants in the lower court proceeding cannot be brought as an action now because of the doctrine of “litigation privilege.” See Arko Plumbing v. Rudd, 230 So.3d 520 (Fla. 3d DCA 2017); Echevarria v. Cole, 950 So.3d 380 (Fla. 2007).

Furthermore, all claims asserted by Plaintiff in Count IV are not proper claims against the Defendants in this case. If they are proper at all, the claims would only be proper against DeepGulf, Inc., who was the Plaintiff in the federal court case.

In addition, these claims are barred by the doctrine of nonmutual collateral estoppel. Pierce v. Ritter, Chusid, Bivonia & Cohen, 133 F.Supp.2d 1344 (S.D. Fla. 2001). Nonmutual collateral estoppel applies when a party had a full and fair opportunity to litigate the issue in the earlier proceeding. Id. (citing to A.J. Taft Coal Co. v. Connors, 829 F.2d 1577, 1580 (11th Cir. 1987)). In the present case, Plaintiff claims that he has been damaged by what he refers to as “several essential corporate documents” “which were falsified and fabricated after the fact” and which Defendant, Howard, “used to support DEEPGULF’s lawsuit.” In fact, in Paragraph 39 of the Complaint, Plaintiff asserts “HOWARD produced during trial on January 17, 2020, two alleged agreements between HOWARD and MOSZKOWSKI...” Of course, Plaintiff had a full and fair opportunity to challenge those agreement at trial in the federal court case and so, Plaintiff’s claims in Count IV are barred by nonmutual collateral estoppel.

COUNT V – FRAUD.

Similarly to Count IV, Plaintiff makes allegations that Howard “arguably provided false information under oath.” As such, Plaintiff’s claims in Count V must be dismissed for the same reason as those in Count IV—(1) the doctrine of litigation privilege; (2) the claim is not proper against these Defendants; and (3) nonmutual collateral estoppel.

COUNT VI—FRAUD.

In Count VI, Plaintiff asserts that it was fraudulent for Defendants to obtain proxies in the course of corporate dealings. There is nothing fraudulent or illegal at all about obtaining proxies in corporate settings. In fact, proxies are provided for in Section 607.0722, Florida Statutes and are perfectly legal. Plaintiff does not state with particularity how the proxies were “fraudulent.” Rule 1.120, Florida Rules of Civil Procedure states that “[i]n all averments of fraud or mistake, the circumstances constituting fraud or mistake shall be stated with such particularity as the

circumstances may permit.” In this case, there are no ultimate facts stated at all, much less with particularity, in Plaintiff’s Complaint. Plaintiff merely refers to “fraudulent collection of proxies” and expects Defendants to respond to this bombastic statement without alleging facts to support the claim.

COUNT VII—FRAUD.

In Count VII, Plaintiff baldly asserts that “HOWARD consistently refused to provide to MOSZKOWSKI close to half the Corporate Shareholders’ addresses, which he kept, and still keeps, secret when he sought and obtained proxies unilaterally in order to change the composition of DEEPGULF’s Board of Directors to his advantage and then frivolously sue MOSZKOWSKI.” Defendants deny this allegation, but the obligation to keep records falls on the corporate entity, not its directors. Section 607.1601(4), Florida Statutes states “A **corporation** shall maintain a record of its current shareholders...showing the address of...each shareholder.” (emphasis added). In addition, like the other counts involving fraud, Count VII does not state any ultimate facts with particularity to support a claim of fraud.

COUNT VIII—FRAUD.

In Count VIII, Plaintiff apparently asserts that there is some sort of fraud by these Defendants in not producing minutes of a Board meeting within a certain time frame. There is no statutory requirements as to how and when minutes of a Board meeting must be produced. As is a repeated theme in this Complaint, Plaintiff fails to state with particularity the facts which support its claim for fraud.

In addition, according to Paragraph 8 of Plaintiff’s Complaint, the lawsuit which ended up in federal court was filed on April 3, 2018. The meeting that Plaintiff complains of occurred on November 6, 2019. Plaintiff would not have had standing to pursue a claim made after the

filing of the Complaint on April 3, 2018. See Ham v. Nationstar Mortg., LLC, 164 So.3d 714 (Fla. 1st DCA 2015); Lindsey v. Wells Fargo Bank, N.A., 139 So.3d 903 (Fla. 1st DCA 2013).

COUNT IX—FRAUD.

In Count IX, Plaintiff again makes a weak assertion of fraud with only conclusory allegations and does not and cannot state any facts with particularity that Gino Favaro's affidavit was false or that Defendants fraudulently induced Mr. Favaro to lie under oath.

COUNT X—FRAUD.

Count X is one of the more unusual allegations, in a Complaint that is full of unusual ones. In Count X the Plaintiff is attempting to assert a claim based upon an alleged commitment made by Defendant Howard to the U.S. Department of Homeland Security. Plaintiff does not have standing and is not a real party in interest in any alleged commitment by Defendant Howard to the U.S. Department of Homeland Security. In addition, to the extent the claims in this Count violate the Statute of Limitations, they must be dismissed as well. As such, this Count must be dismissed.

COUNT XI—CIVIL CONSPIRACY.

Count XI states that Howard attempted in June 2013 to cause a David Rumsey to "substitute a personal high interest loan in lieu of the salary duly owned by DeepGulf to Moszkowski." First, it is important to note that the Plaintiff admits that the court agreed with Mr. Rumsey's position on the loan in Paragraph 59 of the Complaint. Second, conspiracy is an intentional tort, which is subject to a four-year statute of limitations, in accordance with Section 95.11(3)(o), Florida Statutes. As such, the claim is clearly barred by the statute of limitations, pursuant to Plaintiff's allegation in Paragraph 57.

COUNT XII—FRAUD.

The undersigned has read this Count multiple times and cannot make sense of the allegations, as the Plaintiff utilizes ambiguous phrasing such as “while reporting one large Shareholder, other than the one already mentioned, who proved not to exist.” This is not pleading fraud with particularity as is required by Rule 1.120, Florida Rules of Civil Procedure. In addition, it appears as if Plaintiff is asserting a direct claim against Defendant Howard, but the nature of the claim may be derivative in nature, although it is difficult to tell because of the wording of the language in Count XII.

COUNT XIII—FRAUD.

Count XIII is another rambling, difficult to understand in a concise manner Count. It is apparently based upon Counts IV, VII, and XII, which are subject to being dismissed for the reasons discussed, supra. There are allegations that Defendant Howard “apparently falsified both stock and shareholder structures...” The word apparently is important and evidences that Plaintiff can make no allegations that support the alleged falsifications, only that such are “apparent.” In Paragraph 71, Plaintiff asserts that “they conspired, without apparent legitimacy, to reduce the number of Directors from 3 to 2...” Again, the word apparently is used, further evidencing Plaintiff’s inability to allege any facts which might support such conspiracy or fraud.

COUNT XIV—PERJURY.

Count XIV which is presented last by Plaintiff alleges that in a deposition, Mr. Howard committed perjury by not disclosing a 2011 litigation in a deposition in the federal case. This claim must be dismissed because a claim for perjury committed in the course of judicial proceedings is not actionable. Wright v. Yurko, 446 So.2d 1162 (Fla. 5th DCA 1984).

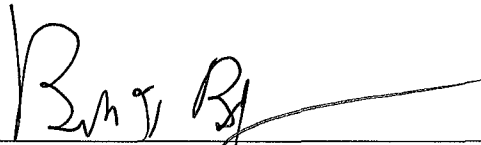
WHEREFORE, the undersigned attorney for the Defendant hereby requests that this Court dismiss the above-referenced actions and requests such other and further relief as this court deems necessary and proper.



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to Marc M. Moszkowski, m.moszkowski@deepgulf.net, Le Verdos, 83300, Chateaudouble, France, this 13th day of September, 2020.



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